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Case Number: 26NNCV03301 Hearing Date: August 14, 2026 Dept: E

Case No: 26NNCV03301

Hearing

Date: 08/14/2026 – 8:30 a.m.

Trial

Date: UNSET

Case

Name: JUAN MARTINEZ v. MEGA HZ ELECTRIC, INC.; JOSE ERNESTO VASQUEZ CRUZ; DOES
1-100

TENTATIVE RULING – MOTION TO
STRIKE

PROCEDURAL

Moving Party: Defendant, Mega HZ Electric, Inc. (Defendant or
Mega)

Responding Party: Plaintiff, Juan Martinez

Moving Papers: Notice/Motion;
Proposed Order

Opposition Papers: Opposition

Reply Papers: Reply

RELIEF REQUESTED

Defendant, Mega HZ Electric, Inc., moves to strike the following portions from Plaintiff's Complaint:

1. Page 4

line 9, Paragraph 15 of the Complaint wherein states: "recklessly".

2. Page 4

line 28, Paragraph 19 of the Complaint wherein states: "recklessly"

3. Page 5

line 18, Paragraph 22 of the Complaint where it states: "reckless manner".

4. Page

6, lines 4-7, Paragraph 25 of the Complaint where it states "Defendants Mega Hz Electric, Inc., Jose Ernesto Vasquez Cruz, and Does 1 through 100, Inclusive, and each of them acted in a negligent, reckless, careless, and improper manner, and with gross negligence, and conscious disregard."

5. Page

9, lines 21-26, Paragraph 49 of the Complaint in its entirety.

6. Page

10, lines 9, Paragraph 50 of the Complaint wherein it states: "and intentionally avoided the consequences of the same."

7. Page

10, line 18, Paragraph 52 of the Complaint wherein it states: "intentionally disregarded this knowledge."

8. Page

11 line 5, Paragraph 53 of the Complaint wherein it states: "intentionally disregarded the dangers of not training their employees."

9. Page

12 line 11, Paragraph of the Complaint 59 "reckless and dangerous manner".

10. Page

12 lines 18-22, Paragraph 61, in its entirety.

11. Page

12, lines 25-27, Paragraph 62 of the Complaint wherein it states: "Defendants Mega Hz Electric, Inc., and Does 1 through 100, Inclusive, and each of them willfully avoided such consequences."

12. Page

13 lines 1, Paragraph 63 of the Complaint wherein it states: "acted with willful and conscious disregard that serious injury to others".

13. Page

13 lines 6-7, Paragraph 64 of the Complaint wherein it states: "Defendants Mega Hz Electric, Inc., and Does 1 through 100, Inclusive, and each of them willfully avoided such consequences."

14. Page

13, lines 13-18, Paragraph 66 of the Complaint in its entirety.

15. Page

13, lines 22- 24, Paragraph 67 of the Complaint wherein it states: "reckless".

16.

Plaintiff's Prayer for Relief, to the extent it seeks an award of punitive or exemplary damages against Defendants at page 15, line 7 of the Complaint.

17.

Plaintiff's Prayer for Relief, to the extent it seeks an award of attorney's fees against Defendants at page 15, line 10 of the Complaint on the ground that no contract or statute authorizing such an award is alleged.

(Def. Mot., p. 2-3.)

Defendant moves on the grounds that such allegations constitute irrelevant, false, and/or improper matter not drawn or filed in conformity with the laws of the State of California, CCP §§ 435, 436.

BACKGROUND

The instant action arises from a motor

vehicle accident.

Plaintiff, Juan Martinez, filed the Complaint on 4/28/2026 against Defendants – (1) Mega HZ Electric, Inc.; (2) Jose Ernesto Vasquez Cruz; and (3) Does 1 through 100, inclusive.

Plaintiff alleges the following three causes of action – (1) Negligence; (2) Negligence Per Se; and (3) Statutory Liability – against all Defendants.

Plaintiff alleges that Defendant, Jose Ernesto Vasquez Cruz (Cruz), was acting within the course and scope of employment of Defendant, Mega HZ Electric, Inc., at the time of the incident giving rise to this action. (Compl., ¶ 7.)

Plaintiff alleges that Defendants (Mega and Cruz) were the operators of Defendant's Vehicle. (Compl., ¶ 13.)

Plaintiff alleges that Defendants (Mega and Cruz) were driving fatigued and tired, while traveling at a high rate of speed and while using a cell phone, caused a collision by crashing Defendant's Vehicle into Plaintiff's Vehicle. (Compl., ¶ 15.)

Defendant, Mega HZ Electric, Inc., now moves to strike several allegations from the Complaint.

LEGAL

STANDARD – MOTION TO STRIKE

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc. (CCP), § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (CCP, § 436(b).)

A motion

to strike cannot be based upon the grounds that a complaint fails to state facts sufficient to constitute a cause of action, but instead is properly based on grounds of superfluous or abusive allegations, or improprieties in form or

procedure. (Ferraro v. Camarlinghi (2008) 161 Cal.App.4th 509, 528-29.)

The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (CCP, § 437; Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 63 [“judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth”].)

Further, CCP § 431.10(a)-(c) states as follows:

(a) A material allegation in a pleading is one essential to the claim or defense and which could not be stricken from the pleading without leaving it insufficient as to that claim or defense.

(b) An immaterial allegation in a pleading is any of the following:

(1) An allegation that is not essential to the statement of a claim or defense.

(2) An allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense.

(3) A demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

(c) An “immaterial allegation” means “irrelevant matter” as that term is used in Section 436.

(CCP, § 431.10(a)-(c).)

TENTATIVE RULING MOTION TO STRIKE

Punitive
Damages

Defendant
moves to strike seventeen (17) portions from Plaintiff's Complaint.

The

first sixteen (16) portions that Defendant seeks to strike pertain to Plaintiff's allegations relating to punitive damages (malice and oppression) and Defendant's alleged conduct (recklessness, gross negligence, conscious disregard, and intentionally disregarding knowledge/consequences).

Defendant

argues that Plaintiff's allegations cannot support a request for punitive damages because Plaintiff's allegations of malice and oppression are conclusory and lacking in fact-specific details. Defendant also argues that Plaintiff does not plead facts to support a request for punitive damages against a corporate employer defendant.

The

Court does not find Defendant's arguments availing.

In an action for the breach of an

obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example by way of punishing the defendant. (Civ. Code, § 3294(a).)

“‘Malice’ means conduct

which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294(c)(1).)

“‘Oppression’ means

despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.” (Civ. Code, § 3294(c)(2).)

“‘Fraud’ means an

intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code, § 3294(c)(3).)

"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (Clauson v. Superior Court (1998) 67 Cal. App. 4th 1253, 1255.) Conclusory allegations, devoid of any factual assertions, are insufficient to support a conclusion that parties acted with oppression, fraud or malice. (Smith v. Sup. Ct. (1992) 10 Cal. App. 4th 1033, 1042.)

Further,
under Civil Code § 3294(b):

An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.

(Civ.
Code, § 3294(b).)

Here,
Plaintiff's Complaint alleges ultimate/sufficient facts for a jury to potentially find that Defendant's conduct was malicious or oppressive, and thus potentially liable for punitive damages. Further, Plaintiff's Complaint alleges ultimate/sufficient facts for a jury to potentially hold the corporate employer defendant (Mega) liable for punitive damages.

Plaintiff's
Complaint explicitly alleges that Defendants are guilty of malice and oppression. (Compl., ¶ 49.)

Further,
Plaintiff's Complaint alleges ultimate/sufficient facts for a jury to potentially find Defendant's conduct to be malicious or oppressive, and thus liable for punitive damages under Civil Code § 3294(c)(1)-(2).

Plaintiff alleges that Defendant, Jose Ernesto Vasquez Cruz (Cruz), was acting within the course and scope of employment of Defendant, Mega HZ Electric, Inc., at the time of the incident giving rise to this action. (Compl., ¶ 7.)

Plaintiff alleges that Defendants (Mega and Cruz) were the operators of Defendant's Vehicle. (Compl., ¶ 13.)

Plaintiff alleges that Defendants (Mega and Cruz) were driving fatigued and tired, while traveling at a high rate of speed and while using a cell phone, caused a collision by crashing Defendant's Vehicle into Plaintiff's Vehicle. (Compl., ¶ 15.)

Further, Plaintiff alleges a basis for punitive damages against Defendant, a corporate employer of Defendant Jose Ernesto Vasquez Cruz, under Civil Code § 3294(b).

Plaintiff alleges ratification in paragraphs five (5) and 58 of the Complaint. (See Compl., ¶¶ 5 & 58.)

Plaintiff alleges that Defendants' officers, directors, and managing agents employed Defendant Jose Ernesto Vasquez Cruz whom they had advanced knowledge was unfit to

operate Defendant's Vehicle, lacked proper training on the operation of vehicles including

the Defendant's Vehicle, and despite having this advanced knowledge of the unfitness of

their employees, they intentionally disregarded this knowledge in an effort to maximize company

profits while ignoring the dangerous consequences of the same. (Compl., ¶ 52.)

Additionally, Plaintiff alleges that Defendants' officers, directors, and managing agents had advanced knowledge that their employees, including Defendant Cruz, operated Defendant's Vehicle

while fatigued at a high rate of speed while using a cell phone and/or other mobile communication device in violation of California traffic and safety rules. (Compl., ¶ 52.)

Therefore, Plaintiff's Complaint alleges ultimate/sufficient facts for a jury to potentially find Defendant liable for punitive damages under Civil Code §§ 3294(b) and 3294(c)(1)-(2).

Defendant is reminded that the instant action is at the pleading stage.

"Malice and oppression may be inferred from the circumstances of a defendant's conduct." (Monge v. Superior Court (1986) 176 Cal.App.3d 503, 511.)

Defendant's motion to strike portions 1-16 of Plaintiff's Complaint is DENIED.

Attorney's
Fees

Defendant moves to strike Plaintiff's request for attorney's fees in the Complaint's Prayer for Relief.

Defendant explains how Plaintiff's Complaint does not identify any contract or statute that allows Plaintiff to recover attorney fees for Plaintiff's causes of action of negligence, negligence per se, and statutory liability.

"Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties; but parties to actions or proceedings are entitled to their costs, as hereinafter provided." (CCP, § 1021.)

In opposition, Plaintiff does not address Defendant's argument on striking attorney's fees.

Defendant's reply points out how

Plaintiff's opposition entirely failed to address Defendant's argument on striking attorney's fees.

The Court is inclined to GRANT

Defendant's motion to strike portion 17 (pertaining to Plaintiff's request for attorney's fees); however, the Court will hear argument on if leave to amend should be granted.